

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ROMINA S. ROZENSZTAJN,

Petitioner

VS.

WILLIAM H. GORROD,

Respondent

) Case Number: FDI-18-789697

) Hearing Date: April 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: CHANGE OF SYSTEM TO APPLY HOLIDAY SCHEDULE AND
ROFR

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Romina S. Rozensztajn (Mother) and Respondent William H. Gorrod (Father) have two
minor children together, twins Penelope and Scarlett (DOB 7/16/2015, age 10). They have joint
legal and joint physical custody of the children (except that Father has sole education-related
decision-making authority), with a 2-2-5-5 parenting time schedule during the school year, and a
separate holiday schedule.
- 2) On 1/23/2026, Father filed a request for an order eliminating the Right of First Refusal or limiting
the right by ordering that it may not be exercised when the children are going to be in the care of
known and trusted caregivers or at a sleepover, a sleepaway camp, or a field trip. Father also
proposes a holiday schedule that he believes will minimize conflict between the parties.
- 3) On 3/27/2026, Mother filed a response stating the Right of First Refusal should be maintained
and that the parties can work with Janet Price or another coparenting professional to try to reach
an agreement regarding the holiday schedule. She raises other concerns, e.g., that the children are

1 not comfortable in Father's wife's care, that they do not want to go on overnight trips or
2 sleepovers, and that Mother has reluctantly, but in good faith (to avoid conflict), agreed to
3 Father's many requests for modifications to the parenting time schedule.

4 4) On 4/13/2026, Father filed a reply in which he disagrees with many of Mother's statements,
5 including those regarding his wife and the children's comfort level regarding overnight trips.

6 5) The parties attended mediation and reached the following partial agreement:

7 a. The parents agree to a 2-2-5-5 parenting schedule as follows:

8 Father's parenting time shall be from Monday at 8:00 a.m. until Wednesday at
9 8am;

10 Mother's parenting time shall be from Wednesday at 8:00 a.m. until Friday at
11 8am;

12 The parents shall alternate weekends, with parenting time beginning Friday at
13 8am and ending Monday at 8am.

14 b. Summer Schedule:

15 During the summer break, the parents agree to a week-on/week-off parenting
16 schedule.

17 The 10-week summer schedule shall begin at 5pm on the first Sunday following
18 the last day of school and shall end at 5pm on the last Sunday preceding the first
19 day of school.

20 The parent who has custody on the weekend immediately preceding the start of
21 the summer schedule shall have the first week of summer parenting time.

22 c. Holiday Schedule:

23 The parties agree to share holidays as follows, and that such holidays shall take
24 priority over the regular custodial schedule.

25 Unless otherwise agreed, all exchanges on work/school days shall occur at 8am
26 and all exchanges on non-school days shall occur at 10am.

27 Mother's Day: Mother on all years;

28 Father's Day: Father on all years;

29 Mother's Birthday: Mother on all years;

1 Father's Birthday: Father on all years;

2 Child's Birthday: Mother in even-numbered years; Father in odd-numbered
3 years;

4 Halloween: Mother in odd-numbered years; Father in even-numbered years;

5 Fourth of July: Mother in even-numbered years; Father in odd-numbered years;

6 Any Friday or Monday holiday shall be spent with the parent who has the
7 adjacent weekend parenting time.

8 6) The issues still in dispute are as follows:

9 a. Mother is requesting that the children not be left alone with any third party.

10 b. Mother is requesting a Tier 2 interview with the children.

11 c. Mother is requesting the ability to travel with the children during her custodial parenting
12 time.

13 d. For Thanksgiving: Mother wishes to have parenting time the entire Thanksgiving break
14 in 2026. Thereafter, Mother wishes to have Thanksgiving in even-numbered years and for
15 Father to have Thanksgiving in odd-numbered years.

16 e. For Winter Break: In even-numbered years, Mother wishes to have the first week, from
17 Sunday at 8am to the following Sunday at 8am, and for Father to have the second week
18 of winter break, from Sunday at 8am to the following Sunday at 8am, in odd-numbered
19 years. Father wishes for the weeks to split beginning on Mondays at 8am to the following
20 Monday at 8am.

21 f. For Spring Break and Thanksgiving, Father wishes for the holiday schedule to apply only
22 to the Monday through Friday portion of the break, not already covered by the regular
23 schedule. If a parent's regular weekend is before the break, that parent continues
24 parenting time from Friday at 8am to Saturday at 8am, at which point the regular
25 schedule resumes. If a parent's regular weekend is at the end of the break, that parent
26 continues parenting time from Monday at 8am to the following Monday at 8am.

27 g. Vacation: Father wishes for each parent to take vacation during their custodial summer
28 weeks, unless otherwise agreed in writing. Father also seeks a "school activity exception"
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for them to attend the 4/22-4/25/2026 school field trip in Coloma, regardless of either parent's custodial time.

- h. Right of First Refusal: Father asks for the Right of First Refusal to apply only when a parent needs a paid third-party caregiver, and it shall not apply when the children are with trusted caregivers, including family members, close friends, or during social or extracurricular activities.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor children is the United States.
- 2) The Court finds it is in the children's best interests to maintain the current custody and parenting time orders and the holiday schedule to which the parties agreed at mediation.
- 3) The Court modifies the Right of First Refusal to not apply when the children are with family members, close friends, or at social or extracurricular activities.
- 4) Mother's request for a Tier 2 interview of the children is denied without prejudice.
- 5) Thanksgiving Break: Thanksgiving Break shall be defined as 8am the Monday before Thanksgiving to 8am (or school drop off) the Monday after Thanksgiving. Mother shall have Thanksgiving Break in even-numbered years, and Father shall have Thanksgiving Break in odd-numbered years.
- 6) Winter Break: Winter Break shall be defined as 8am on the Monday after school ends for the holidays to 8am (or school drop off) on the Monday when school resumes. Father shall have the first week of Winter Break (from 8am on Monday to the following 8am on Monday) in even-numbered years, and Mother shall have the second week of Winter Break (from 8am on Monday to the following 8am (or school drop off) on Monday) in odd-numbered years. The parties shall switch the first and second weeks of Winter Break in odd-numbered years.
- 7) Spring Break: Spring Break shall be defined as 8am on the Monday after school ends for the holidays to 8am (or school drop off) on the Monday when school resumes. Father shall have Spring Break in even-numbered years and Mother shall have spring break in odd-numbered years.

- 1 8) Vacation: The parties shall be permitted to take the children on vacation within the State of
2 California during their custodial summer or vacation weeks, unless they agree otherwise in
3 writing. For any out of state travel, the party who plans to travel shall provide the other parent
4 with 30 days' notice with basic travel information—dates of travel, any flight information, basic
5 itinerary, addresses of all lodging, and emergency contact information. For international travel
6 with the children, the parties must agree in writing to the trip (email or text agreements are
7 acceptable) or obtain a Court order before traveling with the children.
- 8 9) Coloma: Because the Coloma trip falls during Mother's custodial time, Mother shall decide
9 whether the children will go on the Coloma trip.
- 10 10) Father's attorney shall prepare the Findings and Order After Hearing.
- 11 11) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
12 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
13 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
14 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
15 proposed order after hearing directly to the court. Failure to submit the order after hearing within
16 10 days may allow the other party to prepare a proposed order and submit it to the court in
17 accordance with CA Rules of Court, Rule 5.125(d).
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